

deferring, until the date proceedings are resumed, the payment date for renewal fees which had fallen due during the period of the representative's or applicant's incapacity.

The board in T. 854/12 held that, if a board was satisfied that the proceedings had been interrupted, this meant not only that any periods running at the time were suspended (R. 142(4) EPC) but also that the board could not hold oral proceedings or issue a decision in written proceedings.

In T. 1389/18 the board came to the conclusion that any oral proceedings taking place during an interruption and any decision announced at them by the opposition division had to be retrospectively deemed non-existent. The appeals before the board were therefore also devoid of purpose, such that the appeal proceedings had to be ended without a decision on the merits of the case.

Any EPO communications and decisions issued in the period between the date of interruption and the date of resumption are devoid of purpose and must be reissued once the proceedings have been resumed (T. 54/17).

E. Re-establishment of rights

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1. Introduction

Re-establishment of rights constitutes a legal remedy for curing a loss of rights in proceedings before the EPO. If the requirements of Art. 122 EPC and R. 136 EPC are fulfilled and the request for re-establishment is granted, the requester will be treated as if the loss of rights had not occurred (see Art. 122(3) EPC). After the revision of the EPC, further processing has become the standard legal remedy in cases of failure to observe time limits in the European patent grant procedure (see also chapter III.D.2. "Further processing under Article 121 EPC") and thus in some cases has replaced re-establishment (for a synopsis of the changes see "Case Law of the Boards of Appeal", 6th edition 2010, VI.E.1, and OJ SE 4/2007).

The main requirements for a re-establishment of rights are that the requester has the right to file the request (see in this chapter III.E.2.), he was unable to observe a time limit within the meaning of Art. 122(1) EPC (which is not excluded under Art. 122(4) and R. 136(3) EPC) and this failure had the direct consequence of causing a loss of rights (chapter III.E.3.), the request was filed in time and in due form and the omitted act was made good within the time limit (chapter III.E.4.), and the substantive conditions were met, in particular all due care required by the circumstances had been taken (chapter III.E.5.).

2. Right to file request for re-establishment of rights

Under Art. 122(1) EPC re-establishment of rights may be granted to both the applicant and the proprietor of a European patent. Accordingly, it is a legal remedy that is, in general, not available to opponents.

2.1. Exception for opponent – time limit for filing statement of grounds of appeal

Opponents are not entitled to request re-establishment of rights in respect of the two-month time limit for filing an **appeal** under Art. 108, first sentence, EPC (see T 210/89, OJ 1991, 433; see also T 323/87, OJ 1989, 343; T 128/87, OJ 1989, 406; T 314/01; T 2454/11; T 1946/15); nor in respect of the nine-month time limit under Art. 99(1) EPC for filing the **notice of opposition** and paying the appropriate fee (T 702/89, OJ 1994, 472; T 748/93; T 2254/11).

In G 1/86 (OJ 1987, 447) the Enlarged Board of Appeal held, however, that an **opponent as appellant** might have his rights re-established under Art. 122 EPC if he had failed to observe the time limit for filing the statement of grounds of appeal under Art. 108, third sentence, EPC (established case law, see T 335/06, T 1545/16). The reasons justifying the exclusion of opponents from re-establishment of rights in respect of the time limit for appeal – in particular the patent proprietor's interest in no longer being left uncertain as to whether an appeal had been lodged once this time limit had expired – could not be extended to the time limit for filing the statement of grounds of appeal, because this uncertainty no longer existed. The Enlarged Board applied the general legal principle recognised in the contracting states of the EPC that all parties to proceedings before a court must be accorded the same procedural rights, as a principle deriving from the general principle of equality before the law. Under this principle an opponent must not be

treated differently from the patent proprietor as that would result in unjustifiable discrimination against him.

In T 181/14, the appellant (opponent), having filed notice of appeal and a statement of grounds of appeal but failed to pay the appeal fee in due time, was seeking re-establishment of its rights in respect of the time limit for payment. The board saw no reason to depart from the settled case law that Art. 122(1) EPC was applicable only where an appellant-opponent had failed to observe the time limit for filing its statement of grounds of appeal. When it came to re-establishment of rights, there was good reason to treat such a failure to file the statement of grounds of appeal differently from late payment of the appeal fee. Appellants-opponents who failed to observe the time limit for filing the statement of grounds of appeal could have their rights re-established because there was an appeal having legal effects; that is to say, appeal proceedings had been validly initiated. By contrast, if the appeal fee was not paid on time, there was no appeal. It made no difference, the board held, that, in this case, the patent proprietor had replied to the statement of grounds of appeal.

2.2. Re-establishment only in cases of failure to observe a time limit for which it was for the applicant to observe

In J 3/80 (OJ 1980, 92) the Legal Board made it clear that if the **national industrial property office** concerned **failed to forward a European patent application** filed with that national office to the EPO **in time**, with the result that the application was deemed to be withdrawn (Art. 77(5) EPC 1973), the applicant could not claim restitution of rights, since the EPC provided only for restitution of rights where there had been a failure to observe a time limit which it was for the applicant to observe. See also J 1/12.

3. Non-observance of time limit directly causing a loss of right

3.1. The meaning of "time limit"

For re-establishment of rights to be possible, there must be a failure to meet a time limit vis-à-vis the EPO (Art. 122(1) EPC), i.e. a time limit given specifically to the applicant pursuant to the Convention or by an official of the EPO within which he must accomplish a certain act (consolidated cases J 11/91 and J 16/91, OJ 1994, 28; J 21/96). Not every "time limit", "time limitation" or "time restriction" under the EPC is also a time limit pursuant to Art. 122 EPC (J 10/01).

Time limits in the EPC have **two conceptual elements**: (1) a period of time determined in years, months or days, and (2) a relevant date, which serves as the starting date of the time limit, and from which the period of time is counted. Time restrictions imposed on applicants by the EPC, but not having these conceptual elements cannot be regarded as time limits for the purposes of Art. 122 EPC 1973 (J 18/04, OJ 2006, 560).